BRENDAN NGEHSI NEWANFORBI
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No.: _____** **NOTICE OF MOTION AND MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION; MEMORANDUM OF POINTS AND AUTHORITIES** [Fed. R. Civ. P. 26(c)(1)] Judge: _____ Hearing Date: _____ Hearing Time: _____

NOTICE OF MOTION AND MOTION FOR PROTECTIVE ORDER

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, hereby moves this Court pursuant to Federal Rule of Civil Procedure 26(c)(1) for entry of a Protective Order Re: Confidential Information to govern discovery in this action and to authorize the retention and use of confidential discovery materials previously produced in the related, now-disposed state-court action *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032 (the "State Action").

This Motion is made on the grounds that: (1) good cause exists under Rule 26(c)(1) to

protect confidential clinical records, personnel files, proprietary treatment protocols, and privacy-protected information that will be produced or have already been produced in litigation arising from the same nucleus of operative fact; (2) federal courts strongly favor allowing the use of discovery materials obtained in related litigation to avoid wasteful duplication of discovery; and (3) the Proposed Protective Order will protect the legitimate confidentiality interests of all parties while permitting the efficient prosecution of this action.

This Motion is based on this Notice, the accompanying Memorandum of Points and Authorities, the Declaration of Brendan Ngehsi Newanforbi, the [Proposed] Protective Order Re: Confidential Information filed herewith, the pleadings and papers on file in this action, and such oral argument as the Court may permit.

Pursuant to Federal Rule of Civil Procedure 26(c)(1), Plaintiff certifies that conferral with opposing counsel prior to filing this Motion was not practicable because Defendants have not yet been served or appeared in this action. Plaintiff will promptly provide Defendants with a copy of this Motion upon service of the Complaint and will meet and confer with Defendants' counsel regarding any modifications to the Proposed Protective Order.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

This action arises from substantially the same nucleus of operative fact as the now-disposed State Action, in which the parties conducted extensive discovery involving highly sensitive materials -- including clinical treatment records, proprietary treatment protocols, personnel files, and counseling materials protected by the constitutional right to privacy. A Stipulated Protective Order governed that discovery. (Newanforbi Decl. ¶¶ 3-4.)

Now that the State Action has been disposed by order sustaining Defendants' demurrer, Plaintiff faces a practical problem: the State Action's Protective Order restricts the use of Confidential Information to "this Litigation" (the State Action) and one related federal action, and imposes a return-or-destroy obligation within sixty days of the case's conclusion. (Newanforbi Decl. ¶ 6.) Yet the same discovery materials are directly relevant to -- and in many instances essential for -- the claims asserted in this action. Requiring Plaintiff to return or destroy these materials and then re-propound the identical discovery requests would waste the resources of all parties and the Court.

Plaintiff therefore moves for a Protective Order that accomplishes two objectives: (1) establishing a framework to govern future discovery in this action, and (2) authorizing the retention and use of the state-court discovery materials under equivalent protections.

II. PROCEDURAL BACKGROUND

A. The State Action. On February 10, 2026, Plaintiff filed a complaint in the San Joaquin County Superior Court against Katie Palacios and HOPE Psychotherapy, Inc. ("HOPE"), asserting claims arising from HOPE's blanket retention policy in its CDCR-contracted sex

offender treatment program. (Newanforbi Decl. ¶ 2.) During the course of discovery, Defendants produced 542 pages of documents, including HOPE's Clinical Operational Manual, employee personnel records, clinical practice guidelines, collateral notes, email communications, and insurance policy information. (Newanforbi Decl. ¶ 5.)

B. The State-Court Protective Order. On or about June 17, 2026, the San Joaquin County Superior Court entered a Stipulated Protective Order agreed to by both parties. (Newanforbi Decl. ¶¶ 3-4, Ex. A.) The State PO authorized the use of Confidential Information in the State Action and in the related federal action *Newanforbi v. Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.), but did not authorize use in any other proceeding. Section VIII of the State PO requires each party to return or destroy Confidential Information within sixty days after the conclusion of the State Action or the *Derrick* action, whichever is later. (Newanforbi Decl. ¶ 6.)

C. Disposition of the State Action. On July 15, 2026, the San Joaquin County Superior Court sustained Defendants' demurrer. The State Action is now disposed. (Newanforbi Decl. ¶ 7.) The return-or-destroy clock under Section VIII of the State PO has begun running.

D. This Action. Plaintiff now brings claims in this Court under 42 U.S.C. § 1983, 18 U.S.C. § 1962, California Civil Code § 52.1, and common law, arising from the same blanket retention policy, false reports to CDCR, and retaliatory conduct that formed the basis of the State Action. (Complaint ¶¶ 1-6.) This action names Shannon Smith, LCSW, CEO and Founder of HOPE, as lead defendant.

III. LEGAL STANDARD

Federal Rule of Civil Procedure 26(c)(1) provides that "[t]he court may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue

burden or expense." The party seeking the protective order bears the burden of demonstrating good cause. *Phillips ex rel. Estates of Byrd v. General Motors Corp.*, 307 F.3d 1206, 1210-11 (9th Cir. 2002). Good cause exists when "specific prejudice or harm will result" from the absence of a protective order. *Foltz v. State Farm Mut. Auto. Ins. Co.*, 331 F.3d 1122, 1130 (9th Cir. 2003).

With respect to the use of discovery materials obtained in related litigation, the Federal Rules of Civil Procedure "create no automatic prohibition against using discovery obtained in one litigation in another litigation." *Dunford v. Rovi Corp.*, 2015 WL 13752958, at *2 (N.D. Cal. 2015). Courts routinely permit such use where the materials are relevant and the producing party's legitimate confidentiality interests are preserved under an equivalent protective order. See *Condit v. Dunne*, 225 F.R.D. 100, 105 (S.D.N.Y. 2004) ("Allowing the fruits of one litigation to facilitate preparation in other cases advances the interests of judicial economy by avoiding the wasteful duplication of discovery.").

IV. ARGUMENT

A. Good Cause Exists for Entry of a Protective Order

The discovery materials at issue include clinical treatment records, counseling notes, information pertaining to sexual matters, psychological assessments, personnel files, proprietary treatment protocols, and insurance policy information. These categories of information are routinely afforded protection by courts. (Newanforbi Decl. ¶ 5.) Defendants themselves recognized the sensitivity of these materials by insisting on a protective order as a precondition to production in the State Action. (Newanforbi Decl. ¶ 3.)

The Proposed Protective Order replicates, in all material respects, the protections that Defendants negotiated and agreed to in the State Action. Defendants will suffer no prejudice from

its entry because the identical categories of information will be subject to the identical restrictions on disclosure. Indeed, Defendants' own prior conduct in stipulating to the State PO constitutes a concession that these protections are both necessary and sufficient.

B. The Court Should Authorize Retention and Use of State-Court Materials

The 542 pages of documents produced in the State Action are directly relevant to -- and in many instances essential for -- the claims asserted in this action. The State Action and this action arise from the same blanket retention policy, the same Clinical Operational Manual, the same false reports to CDCR, the same retaliatory conduct, and the same institutional practices. Requiring Plaintiff to return or destroy these materials and then re-propound the identical discovery requests would impose unnecessary burden on all parties and the Court.

Federal courts strongly favor avoiding such duplication. In *Condit v. Dunne*, 225 F.R.D. at 105, the court held that "[a]llowing the fruits of one litigation to facilitate preparation in other cases advances the interests of judicial economy by avoiding the wasteful duplication of discovery." In *Dunford v. Rovi Corp.*, 2015 WL 13752958, at *2 (N.D. Cal. 2015), this District confirmed that the Federal Rules "create no automatic prohibition against using discovery obtained in one litigation in another litigation." The burden falls on the party opposing cross-use to demonstrate "good cause" for the restriction -- not on the party seeking to use relevant materials that have already been produced under protective order.

Here, there is no legitimate basis to prohibit cross-use. The materials are relevant. The parties are substantially overlapping. The Proposed Protective Order provides equivalent or greater protection than the State PO. And the state court that entered the State PO is no longer in a position to enforce it, because the State Action has been disposed. (Newanforbi Decl. ¶ 7.)

C. The State PO's Return-or-Destroy Obligation Should Be Stayed

Section VIII of the State PO requires return or destruction of Confidential Information within sixty days after the conclusion of the State Action or the *Derrick* action, whichever is later. Because the State Action is now disposed, the return-or-destroy clock is running. (Newanforbi Decl. ¶ 6.) If Plaintiff is forced to return or destroy these materials before this Court enters a protective order authorizing their retention, the result would be both absurd and unjust: Plaintiff would lose access to materials that are essential to this action, only to re-propound the same discovery requests for the same documents from the same defendants.

The Proposed Protective Order addresses this by staying the return-or-destroy obligation during the pendency of this action, provided that Plaintiff continues to treat the materials in accordance with the Order's confidentiality provisions. (Proposed Order § II.B.) This is the most efficient resolution for all parties.

D. Plaintiff Has Acted in Good Faith and Transparency

Plaintiff files this Motion contemporaneously with the Complaint. Plaintiff has not attached any state-court discovery documents as exhibits to the Complaint, has not disclosed the contents of any documents designated as Confidential, and has referenced only facts -- not documents -- in the Complaint's factual allegations. Plaintiff has taken these steps deliberately to preserve the confidentiality protections while seeking this Court's authorization to proceed.

This approach reflects the transparency that courts expect. Rather than attempting to use the materials without authorization and risk a sanctions dispute, Plaintiff puts the issue before the Court at the outset and asks for an orderly resolution.

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court grant this Motion

and enter the [Proposed] Protective Order Re: Confidential Information, which will: (1) govern the use and disclosure of confidential discovery materials in this action; (2) authorize the retention and use of materials previously produced in the State Action, subject to equivalent protections; (3) stay the return-or-destroy obligation under the State PO during the pendency of this action; and (4) deem the state-court discovery materials produced in this action upon entry of the Order.

Dated: July 16, 2026

Respectfully submitted,

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

CERTIFICATE OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that on July 16, 2026, I caused a true and correct copy of the foregoing **MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION**, together with the Declaration of Brendan Ngehsi Newanforbi and the [Proposed] Protective Order Re: Confidential Information, to be served upon the following by United States first-class mail, postage prepaid, and additionally by email:

Defendant SHANNON SMITH (individually):

c/o HOPE Psychotherapy, Inc.

1245 B Street

Hayward, CA 94541

Defendant HOPE PSYCHOTHERAPY, INC.:

c/o Shannon Smith, CEO

1245 B Street

Hayward, CA 94541

Counsel of Record (courtesy copy):

Blaze Van Dine, Esq.

SIMS, LAWRENCE & BROGHAMMER

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

Email: blaze@sims-law.net; SLB-eservice@sims-law.net

Executed on July 16, 2026, at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per